



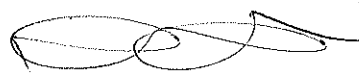
PARATUS

Always Prepared

MASTER SERVICE AGREEMENT

Number:MSA1472

Name of Entity	Sautech (Pty) Ltd	"Customer"
Registration No.	2003/006814/07	
Physical Address	34 Sekrass Avenue, Driehoek, Krugersdorp, 1759	
Phone number	011 755 1190	
Email address	lukas@sautech.net	
Signature		
Name of Signatory	Lucas van Jaarsveld	
Designation of Signatory	Managing Director	
Date of Signature "Effective Date"	13 th March 2023	
Governed by NDA signed on:	11/4	

Name of Entity	Paratus Telecommunications (PTY) Ltd	"Paratus"
Registration No.	2007/0100	
Physical Address	104-106 Nickel Street, Prosperita, Windhoek, Namibia	
Phone number	083 300 1000	
Email address	legal.na@paratus.africa	
Signature		
Name of Signatory	Andrew Hall Ian Grassow	
Designation of Signatory	Managing Director Sales Manager	
Date of Signature	14.03.23	
Name of Sales Executive	Dietrich Beedries	

By signing, each Party acknowledges that it has carefully read and fully understood this Agreement and agrees to be bound by the terms of this Agreement. If an electronic signature has been used to sign this Agreement, each Party agrees that this method of signature is conclusive of their intention to be bound by this Agreement as if signed by each Party's manuscript signature. Each signatory warrants that they have full and valid authority to do so.

This Agreement, in all respects, is governed and interpreted under the laws of the Republic of Namibia.

1. PURPOSE

- 1.1 The purpose of this Agreement is to regulate the terms and conditions under which Paratus shall deliver and provide its Service to the Customer, as well as their technical specifications and features.
- 1.2 By accepting this Agreement, the Customer shall be entitled to request any Service provided by Paratus by using the provided mechanisms.
- 1.3 All of the Services provided by Paratus on Service Order Forms are regulated and governed by this Agreement. The Services have particular service conditions detailed in the Service Schedules accompanying that Service and form part of this Agreement.

2. CUSTOMER'S OBLIGATIONS

- 2.1 In making use of the Service, the Customer shall, to the extent applicable, comply with the site requirements communicated to the Customer before the installation of any equipment at a Customer site.
- 2.2 Where the Customer is or becomes aware of a violation or contravention of this Agreement, it shall cooperate reasonably and provide Paratus with the information necessary to identify, prevent, remedy, or rectify such violation or contravention.
- 2.3 The Customer shall ensure that Paratus has adequate access to the Customer site, facilities and equipment, including office space, data processing and communication facilities reasonably required for the performance of the Service or as otherwise specified in the Service Schedule or Service Order Form.
- 2.4 The Customer shall ensure that for the duration of the Agreement, as applicable to each Service Order Form, it has secured consent from the landlord, if applicable, and shall endeavour to provide suitable access to facilities, including power and space identified by Paratus as sufficient for providing the Service as stipulated in the Service Order Form and Service Schedule.

3. PROVISIONS OF SERVICE

- 3.1 There shall be a Service Order Form for each Service provided under this Agreement, and each Service Order Form shall constitute an agreement between the Parties subject to and regulated by this Agreement, the Service Schedule and from time to time, specific terms on the Service Order Form.
- 3.2 After Paratus accepts the Service request sent by the Customer, Paratus shall make all reasonable efforts to provide the Service to the Customer without undue delay.
- 3.3 The relationship between the Parties shall be that of an independent contractor, and nothing in this Agreement shall be construed to create a partnership, joint venture, or employee-employer relationship. Each Party shall, at all times during this Agreement, perform the duties and responsibilities herein without any control by the other Party. Neither Party is an agent of the other Party and is not authorised to make any representation, contract or commitment on behalf of the other Party.
- 3.4 Paratus shall be entitled to appoint any of its affiliates and or any other service provider to provide the Service on written notice to the Customer to such effect, provided that Paratus shall be and remain liable for such appointee for the due and proper performance by it of all of its duties, functions and obligations under this Agreement.
- 3.5 The Parties shall each, at their own cost and expense, take whatever steps are necessary to procure and discharge their respective obligation and rights in terms of this Agreement and applicable laws to ensure the health and safety of the other Parties' employees, agents, directors, sub-contractors and members of the public.

- 3.6 The Customer shall be entitled to request Paratus to remove any employee, agent or contractor from its team if it is of the reasonable opinion that such person is a security or safety risk. Any such request shall be in writing and stipulate why the Customer believes the requested removal is necessary.
- 3.7 Within 24 hours of completing the installation for the applicable Service, Paratus shall provide a signoff form containing essential information required to configure and use the Service. The Service will automatically be activated and billed after 7 days of completing the installation if no signoff form is received from the Customer.

4. EQUIPMENT

"Customer Equipment" means equipment which is based at the Customer's site and is either leased or purchased from Paratus by a Customer and is used to deliver Service to Customer;

"Paratus Equipment" means all hardware, network facilities, and/or telecommunication facilities and Network Termination Devices which Paratus uses to provide the Services.

- 4.1 Paratus reserves the right to substitute or discontinue (in whole or part) equipment or technology in terms of which the Service is delivered to the Customer. Paratus shall provide the Customer with 6 (six) months' written notice before such substitution or discontinuation.
- 4.2 The Customer shall not be entitled to terminate the Agreement if the substituted equipment or technology provides the same Service as contracted for under the Service Order Form. Paratus shall endeavour to give the customer better or equal options for a discontinued Service.
- 4.3 The Customer is responsible for ensuring that all Paratus Equipment at the Customer's site and all Customer Equipment used to access the Service is kept in a secure location and take all reasonable precautions to restrict access to the security and configuration parameters of all such Equipment to only those persons involved in working with the Equipment.
- 4.4 Where Paratus Equipment is under the control of the Customer, the Customer agrees to:
- a. not remove or allow Paratus Equipment to be moved or removed from the Customer site without Paratus' written consent;
 - b. keep the Paratus Equipment in good condition;
 - c. not allow the Paratus Equipment to be encumbered by operation of law;
 - d. allow Paratus to inspect the Equipment during business hours under the supervision of the Customer;
 - e. accept risk for the Paratus Equipment taking reasonable steps to protect the Equipment from damage or theft; and
 - f. return Paratus Equipment and leased Customer Equipment on the early termination, termination or expiration of the Service.

5. INVOICING

"MRC" or "Monthly Recurring Charge" means the monthly charges for the Service as set out in the applicable Service Order Form;

"NRC" or "Non-Recurring Charge" means the installation fee and or the Paratus Equipment costs (or part thereof) for the Service as set out in the applicable Service Order Form.

- 5.1 Paratus shall invoice the Customer for each Service provided under this Agreement from the activation of the Service. The non-recurring installation cost shall be invoiced on the commencement date of the Service.

- 5.2 Where any Service is activated on any day other than the first day of the month, the Customer shall be charged a pro-rata portion of the non-recurring and recurring costs of the month.
- 5.3 Monthly recurring charges shall be invoiced in advance.
- 5.4 All payments are due within 7 (seven) days from the invoice date.
- 5.5 Paratus shall provide the Customer with a detailed monthly statement of account setting out the amount due and payable by the Customer.
- 5.6 No set-off is allowed.
- 5.7 Unless expressly stated to the contrary, all charges shall be exclusive of value-added tax calculated and levied in terms of the Value-Added Tax Act, 2000 (Act No. 10 of 2000) and any other tax that the Customer becomes obligated to pay arising out of this Agreement.
- 5.8 Paratus shall be entitled to adjust the Monthly Recurring Charge if any regulatory or government-imposed factors impact such charges on 1 (one) month's written notice to the Customer provided that in the case of services that are regulated by a regulatory authority, any increase levied by Paratus shall not exceed those charges approved by the regulatory authority.

6. SERVICE VARIATIONS

- 6.1 If either Party wishes to upgrade (increased cost) or make a change to any element of any Service (increased or the same cost), the following procedure shall be followed:
- 6.2 The Customer shall forward a change request to Paratus setting out the details of the change request;
- 6.3 Paratus shall investigate the feasibility, delivery dates, cost and technical impact of the request within a maximum of 30 (thirty) days of the request;
- 6.4 If the change is agreed to, the Customer shall give written acceptance to Paratus, and the Service Order Form shall be deemed to be amended accordingly.
- 6.5 Changes and downgrades that decrease the total annual Customer invoice shall be dealt with as early termination, and a new Service Order Form shall be signed for the downgrade or changed Service.

7. EARLY TERMINATION

- 7.1 Unless stated to the contrary in the relevant Service Order Form, the early termination penalty shall consist of the Monthly Recurring Charge for the remainder of the Service Order Form term or any extension thereof. This shall include any outstanding charges for the relevant Service.
- 7.2 The Customer shall be obliged to pay the full penalty within 7 (seven) days of receiving the full and final invoice.

8. BREACH

8.1 Termination for cause without penalty

- a. Either Party may terminate this Agreement on 30 (thirty) days written notice if the other Party ceases to trade (either in whole or in part) or has a court order against it placing it under final liquidation. Where a Party is undergoing business rescue and can still perform in terms of this Agreement, the Agreement may not be terminated.
- b. Either Party shall be entitled to terminate this Agreement if the other Party commits a material breach of the Agreement and fails to remedy such a breach within 10 (ten) business days after receipt of written notice drawing its attention to the breach and demanding that it be remedied.
- c. All applicable Service Order Forms associated with this Agreement terminate on termination of this Agreement under this clause.

8.2 Suspension of Service

- a. Paratus may on 14 (fourteen) business days written notice lawfully suspend all or part of any Service until further notice to the Customer if:
 - i. the continued provision of the Service shall cause Paratus to breach applicable law or be in contravention of its licence;
 - ii. the Customer is in breach of any material clause of this Agreement, and such breach remains unremedied; or
 - iii. any overdue and undisputed invoice for charges billed to the Customer remains unpaid. It is recorded that disputes relating to overdue and disputed invoices shall be dealt with under the clause relating to Dispute Resolution.
- b. The exercise of Paratus' right to suspend the Service is without prejudice to any other remedy Paratus may have and does not constitute a waiver of Paratus' right to terminate the Agreement subsequently.
- c. Where Paratus has suspended the Service, and the Customer has remedied the breach, Paratus shall reconnect the Service within 24 hours on the payment of a reconnection fee of 50% of the NRC.
- d. Accounts in default shall be charged interest on the outstanding balance at an annual rate of 3% (three per cent) above the retail lending rate of a commercial bank, calculated daily from the date on which payment becomes due until the date of final payment (both days excluded).

8.3 Force Majeure

- a. The Parties shall not be liable for any failure or delay in performance due to circumstances beyond its reasonable control, including, without limitation, acts of God, earthquakes, labour disputes, changes in law or government policy, riots, fire, war, epidemics, pandemics, acts or omissions of vendors or suppliers, equipment failures, transportation difficulties, or any such occurrence. Either Party may terminate the Service Order Form under the *Termination for cause* clause if any such failure or delay of performance continues for a continuous period of 15 (fifteen) business days without the option of an alternative Service.
- b. *Force Majeure* shall include unstable power supply or continuous power outages resulting from any government utility's inability to supply power to the Customer site or any part of Paratus' network.

9. LIMITATION OF LIABILITY

- 9.1 The Parties agree that any liability to the other Party for losses hereunder shall be limited to direct damage.
- 9.2 The Parties agree that they shall not under any circumstances be liable to one another for any loss regarded in law as indirect, special, incidental, consequential, punitive, or exemplary damages or which damages arise out of in connection with this Agreement.
- 9.3 Without limiting this clause, Paratus shall not be liable to the Customer for:
 - a. the failure of Paratus to supply and/or deliver any Service and/or provide installation of any equipment on a specified date unless such date has been agreed to in writing, and such failure is solely attributable to Paratus. The recourse available to the Customer shall be limited to Service Credits for such Service as set out in the applicable Service Schedule;
 - b. the interruption, suspension or termination of Service for *Force Majeure*;
 - c. any costs arising from unauthorised access;
 - d. a mistake arising from the installation that neither Party was aware of at the time;

e. use of equipment or devices, including Paratus' Equipment and Customer Premises Equipment used by the Customer to access the Service by the Customer or any third party acting on behalf of the Customer; and/or

f. loss or damage arising from lost, damaged or corrupted data due to reasons not attributable to Paratus.

9.4 The breach by Paratus of any Service Schedules shall not be deemed a breach of this Agreement.

9.5 None of the Parties shall be responsible for the breach of this Agreement or its related Service Order Forms because of *Force Majeure*.

9.6 In no event shall the total collective liability for any claims (including negligence) exceed the amount paid by the Customer for the Service within the Paratus financial year before the date the claim was made.

9.8 Nothing in this Agreement shall operate to exclude or restrict either Party's liability for death or personal injury resulting from negligence or any warranty provided herein.

10. DISPUTE RESOLUTION

10.1 If one Party believes that the other Party is in breach of this Agreement, the aggrieved Party shall notify the other Party of the alleged breach, and the Parties shall attempt in good faith to resolve or clarify the dispute between the managing directors within 10 (ten) business days.

10.2 If the Parties cannot cooperatively resolve the dispute, they shall attempt in good faith to mediate the matter at a mutually acceptable location with a legal practitioner or auditor of 10 (ten) years' experience chosen by the Parties to act as mediator. Applicable mediation fees shall be borne equally by the Parties. The mediation requirement shall be deemed to be fulfilled if either Party proposed a qualified mediator and made itself available during the 30 (thirty) days following the notice of mediation, but the mediation did not take place.

10.3 The Parties agree to arbitration in Windhoek in English, according to the Arbitration Foundation of Southern Africa Rules, or as otherwise agreed to in writing between the Parties before the arbitration proceedings, should alternative dispute resolution mechanisms fail. The Parties agree that any decision of such arbitration proceedings shall be binding on them, shall be carried to effect, and shall include an order of costs of the arbitration as the arbitrator deems fit.

10.4 This clause shall not prevent either Party from approaching the Communications Regulatory Authority of Namibia ("CRAN") to lodge a complaint or a court for relief or from agreeing in writing to deviate from the set out dispute resolution plan.

10.5 The Customer is, under no circumstances, entitled to withhold payment of the whole or any part of a disputed invoice.

11. WARRANTY

Paratus warrants in favour of the Customer that:

11.1 it has the necessary competency to fulfil its obligations, as set out in this Agreement, Service Schedule and Service Order Form;

11.2 the Service shall be of the industry standard in terms of quality and the Service rendered in a proper, professional and skilful manner by appropriately qualified employees or contractors;

11.3 all regulatory licences, permits and approvals required to perform the Service have been obtained and are valid as of the Effective Date; and

11.4 where the Customer purchases any equipment from Paratus, Paratus undertakes to cede to the Customer all warranties and guarantees on the equipment provided by the manufacturer and shall provide the Customer with all documentation detailing the terms and conditions thereof.

11.5 Data privacy and protection

- a. This Agreement is governed by the Confidentiality and Non-Disclosure Agreement signed by the Parties, if applicable, and the Paratus Data Protection Policy available on request.
- b. **"Personal Information"** means any information provided by either Party to the other that is an identifying number, financial or banking information, symbol, e-mail address, physical address, telephone number or similar assignment relating to either Party or any customer of either Party, which is subject to protection in terms of any statute in Namibia which imposes data protection requirements from time to time.
- c. The Parties shall use their best efforts to keep Personal Information confidential and shall not disclose any Personal Information to any other person except as required by law, save to the extent set out herein.
- d. The Parties grant each other the right to disclose Personal Information to its Affiliates on a need-to-know basis to provide the Services.
- e. The Parties record that all data, in whatever form, is the Intellectual Property of the Party to which it originally belonged. Accordingly, the respective Party retains all rights, title and interest in and to the data.
- f. The Customer acknowledges that it is primarily responsible for complying with any data protection obligations imposed in terms of any law, including the common law, concerning any Personal Information and shall obtain any consent necessary for the disclosure of Personal Information to the Provider for this Agreement.
- g. The Customer authorises the Provider to use their Personal Information to send digital message notifications of possible breaks in Service and Service offerings.
- h. The Customer shall separate any Personal Information from any other data provided to the Provider to provide the Service and designate the Personal Information as such before disclosing or making it available to the Provider.
- i. **"Confidential Information"** means any information or data in whatever form or medium, whether tangible or intangible, oral or in writing, including, but not limited to, documents, materials or data which by its nature or content is or ought reasonably to be identifiable as confidential and/or proprietary to the Disclosing Party or which is provided or disclosed in confidence or is designated as confidential information by the Disclosing Party whether or not owned or developed by the Disclosing Party, which is not generally known to the Receiving Party, to Receiving Party's personnel and representatives, and of which the Receiving Party may obtain knowledge through or as a result of the relationship established hereunder with the Disclosing Party, access to the Disclosing Party, access to the Disclosing Party's premises, or communications with the Disclosing Party's employees, representatives or independent contractors. Without limiting the generality of the preceding, "Confidential Information" shall include but is not limited to ideas, concepts, business plans, strategies, financial statements, pricing data, operations, inventions, discoveries, formulae, processes, designs, specifications, drawings, prototypes, samples, improvements, developments, applications, marketing data, customer names, projections, trademarks, trade names, trade secrets and any commercial, financial, technical or strategic information, whether or not the same are or may be patented, registered, or otherwise publicly protected;
- j. Each Party must:
 - i. protect the Confidential Information in the manner and with the endeavour of a reasonable person protecting his own Confidential Information;

- ii. use the Disclosing Party's Confidential Information only for this Agreement;
- iii. take all practical steps, both before and after disclosure, to impress upon its employees who are given access to the Confidential Information the secret and confidential nature thereof; and
- iv. not make any Announcements or issue press releases about the Agreement or the transactions related to it without the approval of the other Party.

11.6 Ethical behaviour

The Parties agree to conduct business honestly and ethically following the provisions of the relevant anti-corruption laws. The Parties confirm that they shall conduct business free of corrupt practices, acts of bribery and anti-competitive behaviour or conflicts of interest.

12. INTELLECTUAL PROPERTY RIGHTS

- 12.1 Nothing in this Agreement shall be construed to confer or be deemed to confer on either Party the intellectual property rights of the other Party.
- 12.2 Paratus warrants that no aspect of the Service shall infringe any intellectual property right of any third party. Paratus indemnifies the Customer in respect of a claim that possession or use of the Service or any part thereof supplied by Paratus infringes any intellectual property rights.
- 12.3 If such a claim is made against the Customer, the Customer shall notify Paratus in writing of any actual or alleged breach and shall have made no admission of liability in respect of such a claim.
- 12.4 Paratus shall have sole control of all aspects of the defence of such a claim and rights to any damages or counterclaim.
- 12.5 The Customer shall provide Paratus with all such documentation, information and assistance as Paratus may reasonably require to assist concerning such a claim provided that Paratus shall reimburse the Customer its reasonable cost of providing the same.
- 12.6 If any such claim for which Paratus is liable to indemnify the Customer is upheld by law, Paratus shall be obliged to modify or replace such infringing Service or any part thereof to the extent that the Service is rendered on non-infringing means and that such modification does not materially alter the performance of the Service or procure the right for the Customer to use the infringing service.

13. EXPIRATION

- 13.1 This Agreement shall commence on the Effective Date and remain in force without expiry for as long as there are valid Service Order Forms associated with this Agreement.
- 13.2 The commencement and term of the Service shall be indicated on the Service Order Form and are calculated from the date the Service is activated.
- 13.3 Following the expiration date of the initial term of the Service Order Form, the Service shall continue on a month-to-month basis at the same prices and the same terms of the initial term unless 3 (three) months' written notice is given to Paratus before the expiration of the term on the Service Order Form.
- 13.4 A decommissioning fee may be applicable at the termination of the Service, as set out in the Service Order Form, to remove the Paratus Equipment from the Customer's site.

14. CESSION AND ASSIGNMENT

No rights, duties or liabilities under this Agreement may be ceded, assigned, transferred, conveyed or otherwise disposed of by either Party without the prior written consent of the other Party, which consent shall not be unreasonably withheld.



15. GENERAL

- 15.1 Neither Party may use the other's name, trademarks, trade names or other proprietary identifying symbols without the prior written consent of the other Party, except that Paratus may use the Customer's name on a list of sample Customers for bidding purposes.
- 15.2 Paratus reserves the right to change this Agreement or any particular service condition to adapt them to changing legislation or because of business or technical requirements while ensuring that changes benefit the Customer and Paratus.
- 15.3 This Agreement and its associated documents constitute the entire agreement between the Parties. They may only be amended by the Parties' mutual written consent or as otherwise provided in this Agreement. This Agreement supersedes all prior negotiations.
- 15.4 No waiver of any term or condition of this Agreement, whether by conduct or otherwise, in any one or more instances shall be construed as constituting a waiver of such right.
- 15.5 Any conflict between this Agreement, the Service Schedule and any Service Order Form shall be resolved in the following order of precedence (in descending order of priority) as follows:
- a. concerning conflicts about financial issues, the order of precedence shall be (a) the Service Order Form, (b) the Service Schedule, and (c) the Agreement.
 - b. concerning conflicts about technical and/or Service Level issues, the order of precedence shall be (a) the Service Schedule, (b) the Service Order Form, and (c) the Agreement.
 - c. concerning all other conflicts, the order of precedence shall be (a) the Agreement, (b) the Service Schedule, and (c) the Service Order Form.
- 15.6 The expiration or termination of this Agreement shall not affect such clauses, which of necessity shall continue to have effect after such expiration or termination, notwithstanding that the clauses themselves do not expressly provide for this.
- 15.7 The rule of construction that this Agreement shall be interpreted against the party responsible for drafting or preparing this Agreement shall not apply.
- 15.8 A law shall be construed as any law (including common law) or statute, constitution, decree, judgment, treaty, regulation, directive, by-law, order or any legislative measure of any government, local government, statutory or regulatory body or court.
- 15.9 This Agreement may be executed in counterparts through email exchange of signed, scanned copies, each of which shall be deemed an original and constitute the same Agreement.
- 15.10 If any clause is construed as illegal or invalid, it shall not affect the legality and validity of the remainder of the Agreement. The unlawful or invalid clause shall be treated as being deleted from this Agreement.
- 15.11 Subject to the clause relating to *Dispute Resolution*, the Parties consent to the exclusive jurisdiction of the courts of Namibia in any dispute arising from or in connection with this Agreement.
- 15.12 The Parties choose as their *domicilia citandi et executandi* to serve any process, the physical address indicated or per the court's rules.
- 15.13 Other communication arising from this Agreement may be sent via email. Emails sent by either Party are deemed to be received when responded to, excluding automated responses.